



CHAPTER xviii.

An Act to make further provisions with respect to the A.D. 1905.
undertaking of the South Suburban Gas Company.

[30th June 1905.]

WHEREAS the Crystal Palace District Gas Company (in this Act called "the Company") were incorporated by the Crystal Palace District Gas Company's Act 1858 and were authorised to supply with gas certain parishes and parts of parishes now in the counties of London Surrey and Kent forming a district in the neighbourhood of the Crystal Palace: 21 & 22 Vict.
c. cxxix.

And whereas by the Crystal Palace District Gas Act 1873 (in this Act called "the Act of 1873") it was provided that the Gasworks Clauses Act 1871 should apply to the undertaking of the Company and by section 17 of the Act of 1873 it was (inter alia) provided that the gas supplied by the Company should not contain more than twenty grains of sulphur in any form in one hundred feet of gas and by section 28 of the Crystal Palace District Gas Act 1893 (in this Act referred to as "the Act of 1893") the said section 17 was amended so as to provide that no forfeiture should be incurred in respect of (inter alia) any excess of impurity occasioned by unavoidable cause or accident and in the case of an excess of sulphur unless that excess should amount to two grains upon the average of six consecutive week days or ten grains upon any one day: 36 Vict.
c. lix.

And whereas the reduction of the sulphur compounds in accordance with the said provisions necessarily causes a nuisance to the inhabitants in the neighbourhood and it is found by experience to be of no advantage to the consumers of gas and it is expedient that the said provisions of section 17 of the Act

A.D. 1905. of 1873 and section 28 of the Act of 1893 with respect to sulphur should be repealed:

And whereas it is expedient that the other provisions contained in this Act should be made:

4 Edw. 7.
c. xci.

And whereas by the South Suburban Gas Act 1904 the name of the Company was changed to the "South Suburban Gas Company":

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the South Suburban Gas Act 1905.

Company not
liable to for-
feiture for sul-
phur impurities
other than sul-
phuretted
hydrogen.

2. After the commencement of this Act the Company shall not be liable to any forfeiture by reason of the presence in the gas supplied by the Company of sulphur impurities other than sulphuretted hydrogen.

Fittings not
to be subject
to distress
and engines
&c. though
fixed to pre-
mises to re-
main pro-
perty of
Company.

3.—(1) Subject as herein-after provided any engines motors dynamos fittings apparatus and appliances let for hire by the Company shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be.

(2) Subject as herein-after provided all engines motors dynamos fittings apparatus and appliances let by the Company on hire shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company:

Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such engines motors dynamos fittings apparatus and appliances are or shall be fixed.

(3) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such engines motors dynamos fittings apparatus and appliances as

shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. A.D. 1905.

4. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of that Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company. Period of error in defective meters.

5. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer. Anti-fluctuators for engines.

6. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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